

Before the
FEDERAL MARITIME COMMISSION

Docket No. 25-04

CHINA UNITED LINES, LTD

v.

AMAZON.COM SERVICES, LLC,
AMAZON LOGISTICS, INC. AND
BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

**MOTION TO DEFER HEARING DATES UNTIL
RESOLUTION OF MOTION FOR SUMMARY DISPOSITION**

Respondents Amazon.com Services LLC, Amazon Logistics Inc., and Beijing Century Joyo Courier Service Co., Ltd., by and through their undersigned counsel, hereby submit this motion to amend the scheduling order (Dkt. No. 79) to defer the dates for filing of prehearing statements and commencement of the hearing until thirty days after the Presiding Officer decides the pending Motion for Summary Disposition (“Motion”).

Pursuant to 46 C.F.R. § 502.102, motions for enlargement of time “may be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” The request to defer the hearing dates and the time to file the prehearing statement satisfies this procedural requirement as this motion is being filed more than seven days before each of the remaining deadlines, and is supported by good cause.

Good cause exists to grant this motion. At the time the current schedule was agreed to and adopted by the Presiding Officer it was not certain whether motions for summary disposition would

be permitted. The parties therefore agreed to a schedule that provided time for a hearing and issuance of an Initial Decision prior to the current January 20, 2027 deadline set pursuant to 46 C.F.R. § 502.61(d) and the Commission's order of June 22, 2026. Subsequently, the Presiding Officer's July 10, 2026 Order recognized that this case presents the "unusual situation" in which a motion for summary disposition would be appropriate after the close of discovery because "China United's theory of the case appears to have changed since the motion to dismiss was decided," and "it appears that the matter may be resolved as a matter of law without determination of disputed facts" *See* Dkt. No. 79, Fourth Revised Scheduling Order (July 10, 2026) at 1. Respondents thus believe that additional time should be given to allow for proper consideration of the Motion, which is fully briefed and awaiting decision, and to allow the parties to prepare for the hearing with the benefit of guidance from that decision if the Motion is denied.

The requested deferral would also eliminate the need for the prehearing conference that China United has stated it intends to request next week, as such a conference would serve no purpose if the Motion is granted. Even if the Motion were denied in whole or in part, the Presiding Officer's decision may provide guidance that would assist the parties in preparing for a hearing and in addressing issues at any prehearing conference. In that case, Respondents would have no objection to participating in a prehearing conference if the Presiding Officer believes doing so would be efficient and useful to discuss, among other issues, why a private reparations action requires a full evidentiary hearing.

The Presiding Officer's pending decision on the Motion for Summary Disposition may materially affect the issues to be addressed in the parties' prehearing briefs and at hearing. Adjusting the schedule to permit briefing after issuance of that decision will promote efficiency and conserve resources. Respondents therefore respectfully submit that it would be more efficient

for both the Presiding Officer and the parties to focus on resolution of the Motion rather than on preparing for and participating in a conference and a hearing contingent on the Motion being denied.

Pursuant to 46 C.F.R. § 502.71(a), Respondents' counsel have conferred with counsel for Complainant, who advised that Complainant does not consent to this motion and intends to file a motion to schedule a prehearing conference next week.

Respectfully submitted,

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/s/ John Longstreth

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Counsel for Respondents

September 18, 2026

CERTIFICATE OF SERVICE

I certify that on this 18th day of September, 2026, a true and correct copy of Respondents' Motion to Defer Hearing Dates was filed electronically with the Secretary, with a copy to judges@fmc.gov and to the following counsel of record, as provided by the Initial Order in this proceeding.

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